



Linda S. Adams
Acting Secretary for
Environmental Protection

California Regional Water Quality Control Board Central Valley Region

Katherine Hart, Chair

1685 E Street, Fresno; California 93706
(559) 445-5116 • Fax (559) 445-5910
<http://www.waterboards.ca.gov/centralvalley>



Edmund G. Brown Jr.
Governor

6 January 2011

Ken Wooden
Wal-Mart Stores East, LP
2001 S.E. 10th Street, Dept. 9562
Bentonville, AR 72716

NOTICE OF APPLICABILITY

WATER QUALITY ORDER 2003-0003-DWQ, STATEWIDE GENERAL WASTE DISCHARGE REQUIREMENTS FOR DISCHARGES TO LAND WITH A LOW THREAT TO WATER QUALITY, WAL-MART STORES EAST, LP, HANFORD PHARMACY DISTRIBUTION FACILITY, HYDROSTATIC TEST DISCHARGE, KINGS COUNTY

Wal-Mart Stores East, LP submitted a Notice of Intent (NOI), dated 10 December 2010, for discharge of hydrostatic test waters from the fire suppression system at its Hanford Pharmacy Distribution Facility under Water Quality Order No. 2003-0003-DWQ, *Statewide General Waste Discharge Requirements for Discharges to Land with a Low Threat to Water Quality* (hereafter General Order). The NOI included a filing fee, Drainage Calculations, and a Discharge Monitoring Plan.

The NOI contains all the information required to evaluate applicability of the General Order; therefore, the NOI is complete. Based on the information provided, the discharge meets the conditions of the General Order. The discharge is hereby covered under General Order No. 2003-0003-DWQ-0014, Waste Discharge Identification System No. 5C16NC00138. Please ensure that these numbers are included on correspondences related to this site.

LOCATION

The Wal-Mart Hanford Pharmacy Distribution Facility (Facility) is at 13231 South 11th Avenue, Hanford, California, Township 19 South, Range 21 East, Section 13 MDB&M (Assessor's Parcel Number 018-242-043).

The Facility and disposal area are in the Tulare Lake Basin. The *Water Quality Control Plan for the Tulare Lake Basin, Second Edition*, revised January 2004 (hereafter Basin Plan), designates beneficial uses, establishes water quality objectives, and contains implementation programs and policies to achieve water quality objectives for all waters of the Basin.

California Environmental Protection Agency

PROJECT DESCRIPTION

According to the NOI, the discharge consists of potable water used to test the Facility's fire suppression system. Approximately 350 gallons per week of hydrostatic test water and cooling water is discharged as part of a weekly auto start test of the Facility's diesel fire pump. The cooling water is from a heat exchanger in the engine of the diesel pump and will not come in contact with exhaust gases or diesel fuel. The Facility will also discharge approximately 71,000 gallons of hydrostatic test water during an annual pump test and system-flush of the Facility's fire suppression system.

Discharge will be to an on-site storm water retention basin. Depth-to-water beneath the ponds is greater than 80 feet based on Department of Water Resource Groundwater Elevation Maps. According to the drainage calculations provided with the NOI the storm water retention basin has a storage capacity of approximately 0.85 million gallons with three feet of freeboard, which is more than sufficient to accommodate flows from the fire suppression system in addition to storm water from a 100-year storm event.

The City of Hanford adopted a Negative Declaration (Site Plan Review No. 2010-05) for the Facility in accordance with the California Environmental Quality Act (CEQA) and filed a Notice of Determination on 3 May 2010.

This Notice of Applicability (NOA) regulates the discharge of hydrostatic test and non-contact cooling waters from the Wal-Mart Hanford Pharmacy Distribution Facility's fire suppression system.

FACILITY-SPECIFIC REQUIREMENTS

1. Hydrostatic test waters shall be disposed of as described in the NOI and in accordance with the requirements contained in the General Order. Discharge of wastewater at a location or in a manner different from that described in the NOI is prohibited.
2. The storm water retention pond shall be managed in a manner including weekly observation and monitoring following the auto start test and immediately following the annual pump test to ensure there is sufficient freeboard to handle the discharge and seasonal precipitation. Results shall be submitted semi-annually in accordance the General Order's Monitoring and Reporting Program.
3. The Discharger shall submit the required annual fee (as specified in the annual billing issued by the State Water Resources Control Board) until the NOA is officially terminated.
4. Failure to abide by the conditions of the General Order and this letter authorizing applicability, including its monitoring and reporting requirements, could result in enforcement actions as authorized by provisions of the California Water Code.

6 January 2011

If you have any questions regarding this NOA or associated fees, please contact Katie Carpenter at (559) 445-5551 or by email at kcarpenter@waterboards.ca.gov.

for 
Pamela C. Creedon
Executive Officer

Enclosures: Water Quality Order No. 2003-0003-DWQ

cc: Wilson Goode, Jacobs Engineering Group, Inc., Fort Worth (w/ enclosure)